



POLICE DEPARTMENT

July 3, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202301078 (Incident Date: January 14, 2023) regarding Police Officer
Ahteramul Haque, Tax No. 970581 (DADS No. 2024-30825)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202301078, pertaining to Police Officer Ahteramul Haque. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Haque would be detrimental to the Police Department's disciplinary process.

In this matter, CCRB alleges that Police Officer Haque took law enforcement action based upon actual or perceived age, gender, and race. The CCRB alleges Police Officer Haque was motivated by bias in his decision to stop the complainant, who had just committed fare evasion in the transit system, by walking through the emergency gate and not paying her fare. The Police Commissioner has determined Police Officer Haque was not motivated by bias, and did not take law enforcement action based upon actual or perceived age, gender, and race. The Police Commissioner finds that Police Officer Haque exercised his police duties properly. Police Officer Haque was on post, visible in the Union Square subway station, and upon observing a female commit fare evasion, he lawfully stopped her. The Police Commissioner disagrees with any assertion that this stop was improper, or done with bias.

CCRB contends that Police Officer Haque's discriminatory intent was proven by circumstantial evidence. However, the CCRB selectively and ineffectively analyzed only some of the factors of the seven factor test from *Leblanc-Sternberg v Fletcher*¹. The CCRB argued that the

¹ 67 F. 3d 312, 425 (2nd Cir. 1995)

sequence of events leading up to Police Officer Haque's stop of the complainant demonstrated Police Officer Haque's decision was motivated by the complainant's age, gender, and race. Specifically, the CCRB noted at least sixteen (16) individuals passed through the emergency exit prior to the complainant, but Police Officer Haque did not stop any of them. The CCRB concluded that by not stopping any of the individuals before stopping the complainant, Police Officer Haque's stop was motivated by age, gender, and race. It would be impossible for Police Officer Haque to have stopped every individual who committed fare evasion, and CCRB agreed with this, but questioned why he stopped this complainant. However, the Police Commissioner determined this answer is clear. Police Officer Haque could not initiate multiple stops simultaneously, and as he stated, he stopped the first person he observed committing fare evasion. For CCRB to jump to the conclusion of bias based policing, based on race, gender, and age, is a disservice to the officer, who was doing his job.

The CCRB argued that because Police Officer Haque did not stop any individuals who had committed the same violation as the complainant prior to stopping her, his action constituted selective enforcement of the law. To prove their position, the CCRB magnified the cropped sub clip of the lower-right hand corner of Police Officer Haque's Body Worn Camera footage by two-hundred and twenty-six (226) percent to assess the ages, genders, and races of the individuals who had walked through the emergency exit before the complainant, and listed them to argue that the complainant was treated differently than other similarly situated individuals. However, this analysis overlooked the fact that human eyes do not capture events like this. The Police Commissioner has determined that this showed how unreasonable it is to presume that Police Officer Haque was able to assess all of these individuals' ages, genders, and races within less than a minute, while inspecting the entire station, and then instantly spot the complainant from the diverse crowd using the New York City subway system and selectively initiate a stop based on her age, gender, and race.

CCRB stated that Police Officer Haque did not provide a credible non-discriminatory explanation for his stop of the complainant. As stated above, Police Officer Haque lawfully stopped the complainant based on his observation of unlawful activity, which in and of itself did not require any further justification. Police Officer Haque clearly stated his primary factor in initiating the stop was the violation of the law he witnessed. Police Officer Haque provided a non-discriminatory explanation regarding his decision to stop the complainant and no other individuals; mainly, that he stopped the first person committing fare evasion when he turned his attention to the emergency exit, and that person happened to be the complainant. Furthermore, the Police Commissioner analyzed the data provided by CCRB, and concluded that said numbers and tables fail to support Police Officer Haque had a pattern of disparities in his enforcement activities.²

In conclusion, Police Officer Haque has been a member of the Department for over four (4) years, and has not been the subject of any prior substantiated CCRB's or formal Department discipline. The Police Commissioner has determined the evidence is clear, Police Officer Haque was merely doing his job, and there needs to be accountability on members of the public to follow the law. Furthermore, when Police Officer Haque stopped the complainant, she was not compliant after committing fare evasion. The Police Commissioner has determined to allege this stop was

² NYPD Data Analysis for CCRB Case #202301078 (April 26, 2024)

anything other than lawful, is not supported by facts, evidence, or an objective view of policing. Police Officer Haque could only stop one person at a time, in order to safely address the condition at hand. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Police Officer Haque for the racial profiling and bias-based policing allegations.

Sincerely,

A handwritten signature in black ink, appearing to read "ASPM", is written over the typed name.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

July 11, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202301078 Police Officer Ahteramul Haque, Tax No. 970581

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated July 3, 2024 (hereinafter referred to as the “Letter”) informing the Civilian Complaint Review Board (CCRB) of the Police Commissioner’s intent to impose no disciplinary action against PO Haque for the substantiated allegations that he engaged in biased policing based on race, age, and gender.

As an initial matter, the letter relies on incorrect legal standards in two respects. First, the letter implies that discriminatory intent needs to be the primary factor in an officer’s decision-making process to constitute biased policy. On page 2, it states, “Police Officer Haque clearly stated his primary factor in initiating the stop was the violation of the law he witnessed.” This assertion misstates the NYPD’s own policy regarding biased policing. NYPD Administrative Guide Section 304-17 prohibits officers from making “a decision to initiate [law] enforcement action against a person [that] is motivated even in part by a person’s actual or perceived race, color, ethnicity or national origin, . . . unless the officer’s decision is based on a specific and reliable suspect description that includes not just race, age, and gender, but other identifying characteristics or information” (emphasis added).

Second, the letter misstates the law regarding the consideration of circumstantial evidence to establish discriminatory intent. On page 1, the letter states that the CCRB, “selectively and ineffectively analyzed only some of the factors of the seven-factor test from *Leblanc-Sternberg v Fletcher*.” However, there is no such seven-factor test. Instead, the court in *Leblanc* held that “[d]iscriminatory intent may be inferred from the totality of the circumstances,” and referenced a non-exhaustive list of six types of circumstantial evidence that had been found to be relevant in other discrimination cases. 67 F.3d 412, 425 (2d Cir. 1995). Two of those other cases, cited by the *Leblanc* court, are *Village of Arlington Heights v. Metro. Housing Dev. Corp.*, 429 U.S. 252, 266-67 (1977), and *United States v. Yonkers Bd. Of Education*, 837 F.2d 1181, 1221 (2d Cir. 1987), both of which mention these six categories as the kinds of evidence the factfinder “may” or “might” consider when determining whether the alleged discriminator was motivated by discriminatory intent. There is no requirement that a factfinder analyze all of these categories of evidence, when

some types of evidence are unavailable or not relevant to a particular case. In this case, the CCRB looked at five relevant categories of circumstantial evidence, including one – PO Haque’s lack of any prior biased policing or similar misconduct history – which the CCRB determined did not support a finding of bias on PO Haque’s part.¹ Moreover, while another category – the officer’s violation of law and/or Department policy– was not individually analyzed in the CCRB Closing Report, it was referenced in the “selective enforcement” subsection, which included the disclaimer that “although PO Haque may not have violated the law or even any Department policies or procedures through his actions in this case, treating § 87(2)(b) differently than other similarly situated individuals because of her race, gender, and/or age would be an example of selective enforcement of the law.”²

Additionally, the letter leaves out key facts in its discussion of PO Haque’s selective enforcement. The letter focuses on the fact that the CCRB cropped and zoomed in on one clip from PO Haque’s body-worn camera and argues that PO Haque would not have been able to identify the races, ages, and genders of the individuals shown in the footage with his own eyes. In referencing PO Haque’s body-worn camera, the investigation simply used common courtroom video evidence techniques for the convenience of those reviewing the case, in addition to citing to PO Haque’s original body-worn camera footage. PO Haque stated in his own testimony that he was standing approximately thirty to forty feet from the emergency gate before stopping § 87(2)(b) inside a well-lit subway station. Common sense indicates that from this distance, he would have been able to identify the races, ages, and genders of at least some of the individuals who walked through the gate before § 87(2)(b). Importantly, the letter ignores the fact that body-worn camera footage from PO Haque’s partner, PO Hossain, shows that PO Haque was looking steadily in the direction of the emergency gate for almost the entire time when it was open prior to his stop of § 87(2)(b).³ This fact severely undercuts PO Haque’s non-discriminatory explanation that § 87(2)(b) was the first person he observed walk through the gate and demonstrates that PO Haque was not “inspecting the entire station” during this time period, as stated on page 2 of the letter.

Based on the logic used in the letter, however, PO Haque did not need to provide any non-discriminatory explanation for his actions to begin with. On page 2, the letter states, “Police Officer Haque lawfully stopped the complainant based on his observation of unlawful activity, which in and of itself did not require any further justification.” The legal concept of selective enforcement of the law means that an officer cannot take enforcement action based on considerations such as race, even if they have an objective legal basis—such as probable cause—for taking such action. *See Whren v. United States*, 517 U.S. 806, 813 (1996); *People v. Robinson*, 97 N.Y.2d 341, 351-52 (2001); *Floyd v. City of New York*, 959 F.Supp.2d 540, 571 (S.D.N.Y. 2013); *Raza v. City of New York*, 998 F.Supp.2d 70, 79 (E.D.N.Y. 2013). Therefore, when an officer stops an individual from one demographic group, and not individuals from another who have engaged in the same unlawful behavior at the same time as the stopped individual, an explanation is certainly required. Where, as here, that non-discriminatory explanation is contrary to the facts, the potential falsity of the officer’s explanation is suggestive of bias. *Turkmen v. Hastly*, 789 F.3d 218, 256-57 (2d Cir. 2015). The investigation gave PO Haque multiple opportunities to explain why he stopped § 87(2)(b) and not the other violators, and the only explanation he provided was highly implausible based

¹ 202301078, Closing Report, p. 11.

² *Id.* at p. 10.

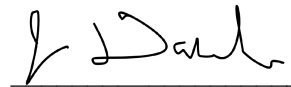
³ *Id.* at p.6.

on PO Haque and PO Hossain's body-worn camera footage, which was one factor supporting a finding of bias in this case.

Finally, the letter summarily states on page 2 that the data provided by the CCRB fails to show that PO Haque had "a pattern of disparities in his enforcement activities," without providing any further explanation. The CCRB reiterates that there were suggestive trends in PO Haque's data. This includes the facts that five of the six summonses PO Haque issued to Asian American/Pacific Islander (AAPI) civilians in the previous year were issued to AAPI women, and all five of these summonses were issued to AAPI women under 30 years of age, and that PO Haque issued more fare evasion summonses to young, AAPI women during the previous year than were issued by the rest of the officers in his command combined.⁴

Accordingly, for the reasons set forth above, the CCRB believes that the charges and specifications recommended for the substantiated biased policing allegation against PO Haque are appropriate and consistent with the goals of the NYPD's Administrative Guide and Disciplinary Matrix and ask that the Department serve the charges and specifications on PO Haque.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J Darche", written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

⁴ Id. at p. 12.



POLICE DEPARTMENT

July 12, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

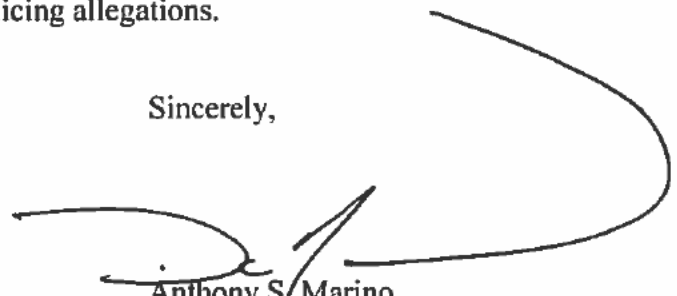
Re: CCRB Case No. 202301078 (Incident Date: January 14, 2023) regarding Police Officer
Ahteramul Haque, Tax No. 970581 (DADS No. 2024-30825)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 11, 2024, concerning the Civilian Complaint Review Board (“CCRB”) case involving Police Officer Ahteramul Haque. Nevertheless, he maintains that it would be detrimental to the Police Department’s disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Haque for the reasons expressed in my July 3, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed against Police Officer Haque for the racial profiling and bias-based policing allegations.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner’s Office